No. 05-20-00920-CV

IN THE COURT OF APPEALS
FOR THE FIFTH DISTRICT OF TEXAS
AT DALLAS

IN RE: J.R.

J.R.
Appellant,

v.

THE STATE OF TEXAS
Appellee.

On Appeal from the 305th Judicial District Court, Dallas County, Texas
Trial Court Cause No. JD-20-00313-X

APPELLANT'S OPENING BRIEF

Respectfully submitted,

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1. IDENTITY OF PARTIES, COUNSEL, AND JUDGES

In accord with Rule 38.1 of the Texas Rules of Appellate Procedure, Appellant provides this Court with this complete list of all interested parties.

Trial Court: 305th Judicial District Court of Dallas County, Texas.

Trial Court Judge: The Honorable Cheryl Lee Shannon.

Appellant: J.R.

Appellate Counsel: Niles Illich; Rebekah Perlstein; Scott H. Palmer, P.C., 15455 Dallas Parkway, Suite 540, Addison, Texas 75001.

Appellee: The State of Texas, represented at trial and on appeal by the Dallas County District Attorney's Office, 2600 Lone Star Dr., Dallas, Texas 75212.

2. CITATION TO THE RECORD

The reporter's record is cited to as: [10 RR 23] this hypothetical citation would be to volume 10, page 23. The clerk's record is cited to as: [CR 23] this hypothetical citation would be to page 23 of the one volume clerk's record.

3. STATEMENT CONCERNING ORAL ARGUMENT

Appellant requests oral argument, but Appellant recognizes that this is an accelerated appeal, and that oral argument may not be feasible.

4. STATEMENT OF THE CASE

The State of Texas charged Appellant, a juvenile, with Murder. Tex. Penal Code § 19.02(c). [CR 6]. The State filed its first petition for discretionary transfer on March

5, 2020. [CR 13]. The State filed an amended petition for discretionary transfer on March 24, 2020. [CR 25]. The juvenile court held a certification hearing on October 5, 2020. [CR 11]. The Court certified Appellant. [CR 92]. The case was transferred to the adult system. [CR 96]. This accelerated appeal follows. [CR 106].

5. ISSUES PRESENTED

Appellant presents two issues for appeal.

Issue One: Section 54.02(h) and *Moon* require a juvenile court to specifically explain the facts that underly a decision to certify a juvenile. This requirement demands that a juvenile court show that the court engaged in a deliberative effort and made a reasoned decision. Here, the trial court's order failed to include any mention of [the appellant's intellectual, medical, and conduct history, omitted from this transcription]. Did the trial court honor § 54.02(h) and *Moon*?

Issue Two: In his second issue, Appellant contends that the evidence is factually insufficient to find that Appellant was sufficiently sophisticated and mature to certify him as an adult. Specifically the overwhelming preponderance of the evidence showed that Appellant was unsophisticated and immature. Did the trial court err in finding that Appellant was mature and sophisticated and belongs in the adult criminal system to face a charge for Murder?

6. STANDARD OF REVIEW AND LAW FOR JUVENILE CERTIFICATION

I. Standard of Review

[The standard-of-review argument on the preceding pages is omitted from this transcription.]

The appellate courts should conduct appellate review of the juvenile court's discretionary decision to waive jurisdiction in essentially the same way that the El Paso Court of Appeals has said that the juvenile court's discretion in determining juvenile dispositions should be scrutinized on appeal, to wit:

> We apply a two-pronged analysis to determine an abuse of discretion: (1) did the [juvenile] court have sufficient information upon which to exercise its discretion; and (2) did the [juvenile] court err in its application of discretion? A traditional sufficiency of the evidence review helps answer the first question, and we look to whether the [juvenile] court acted without reference to any guiding rules or principles to answer the second.

Id. at 47.

II. The Law Related to Waiver of Juvenile Court Jurisdiction

The United States Supreme Court in *Kent v. United States*, 383 U.S. 541, 556, 86 S. Ct. 1045 (1966), stated "[i]t is clear beyond dispute that the waiver of jurisdiction is a 'critically important' action determining vitally important statutory rights of the juvenile." The Court characterized the "decision as to waiver of jurisdiction and transfer of the matter to the District Court [as] potentially as important to petitioner as the difference between five years imprisonment and a death sentence." *Id.* at 557. The very

act of a transfer to a criminal district court carries with it the deprivation of the right to be detained in the protective environment of the Juvenile Justice Center pending trial, and after trial once convicted, and the rehabilitative and educational programs that would be available under the Family Code if the proceeding were in a juvenile court.

The Texas Court of Criminal Appeals echoed *Kent*, stating: "transfer to criminal district court for adult prosecution is 'the single most serious act the juvenile court can perform . . . because once waiver of jurisdiction occurs, the child loses all protective and rehabilitative possibilities available.'" *Hidalgo v. State of Texas*, 983 S.W.2d 746, 755 (Tex. Crim. App. 1999). The *Hidalgo* Court noted that "transfer was intended to be used only in exceptional cases" and that "[t]he philosophy was that, whenever possible, children should be protected and rehabilitated rather than subjected to the harshness of the criminal system because children, all children are worth redeeming." *Id.*

7. ARGUMENT

First Issue Presented

Section 54.02(h) and *Moon* require a juvenile court to specifically explain the facts that underly a decision to certify a juvenile. This requirement demands that a juvenile court show that the court engaged in a deliberative effort and made a reasoned decision.

I. Standard of Review

Appellant incorporates the standard of review from the start of this brief into this issue in full.

II. Law

Section 54.02 of the Family Code conditions a juvenile court's discretion to waive jurisdiction. Tex. Fam. Code § 54.02(f).

While the juvenile court does not demand that a Court find that every factor in § 54.02(f) support transferring the case, *Moon*, 451 S.W.3d at 28, 47 & n.78 (citing *Hidalgo*, 983 S.W.2d at 754), the Court of Criminal Appeals and § 54.02 require the juvenile court to consider, at a minimum, (1) whether the alleged offense was against person or property, with greater weight in favor of transfer given to offenses against the person; (2) the sophistication and maturity of the child; (3) the record and previous history of the child; and (4) the prospects of adequate protection of the public and the likelihood of the rehabilitation of the child by use of procedures, services, and facilities currently available to the juvenile court. *Id.* at 38 (quoting § 54.02(f)). The juvenile court must also "make specific findings of fact regarding each of the section 54.02(f) factors." *In re J.G.*, 495 S.W.3d 354, 367 (Tex. App.—Houston [1st Dist.] 2016, pet denied); *see Moon*, 451 S.W.3d at 47; 49-50.

Mitigation evidence falls within those factors and the juvenile court is required to consider this evidence. *In re A.K.*, No. 02-19-00385-CV, 2020 Tex. App. LEXIS 2801, at *21 (Tex. App.—Fort Worth Apr. 2, 2020, no pet.). Mitigation evidence must be

included in a § 54.02(h) opinion because a sufficiency review is limited to "the facts that the juvenile court expressly relied upon, as required to be explicitly set out in the juvenile transfer order under Section 54.02(h)." *Moon*, 451 S.W.3d at 50.

Section 54.02 establishes that a court has no discretion to waive jurisdiction except when the alleged offense is a felony and the child is at least a certain age—14 or 15, depending on the specific type of felony alleged. Tex. Fam. Code §§ 54.02(a)(1), (2). The Court must then decide whether there is probable cause to believe the child committed the alleged offense. *Id.* § 54.02(a)(3). But even a finding of probable cause that a juvenile committed a first-degree felony under § 54.02(a) does not justify automatic waiver [remainder of this paragraph omitted from this transcription].